

An Act

ENROLLED HOUSE
BILL NO. 1168

By: Crosswhite Hader, Adams,
Lepak, Maynard, Hildebrant,
West (Kevin), Steagall,
Hill, Woolley, Shaw,
Jenkins, Olsen, Humphrey,
Hardin, Turner, Sneed,
Banning, Stark, Wolfley,
Staires, Norwood, Boles,
Hall and Miller of the
House

and

Bullard, Sacchieri,
Stewart, McIntosh,
Grellner, Jett, Guthrie,
Woods, Pederson, Frix,
Alvord, Logan, Bergstrom
and Gillespie of the Senate

An Act relating to abortion-inducing drugs; defining
terms; prohibiting trafficking of certain drugs;
providing for felony; providing exceptions; and
providing for codification.

SUBJECT: Abortion-inducing drugs

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 1-756.30 of Title 63, unless
there is created a duplication in numbering, reads as follows:

A. As used in this act:

1. "Abortion" means the use or prescription of any instrument,
medicine, drug, or any other substance or device intentionally to
terminate the pregnancy of a female known to be pregnant with an

intention other than to increase the probability of a live birth, to preserve the life or health of the child after live birth, to remove an ectopic pregnancy, or to remove a dead unborn child who died as the result of a spontaneous miscarriage, accidental trauma, or a criminal assault on the pregnant female or her unborn child;

2. "Abortion-inducing drug" means a medicine, drug, or any other substance prescribed or dispensed with the intent of inducing an abortion. This includes off-label use of drugs known to have abortion-inducing properties, which are prescribed specifically with the intent of causing an abortion, such as misoprostol (Cytotec) and methotrexate. This definition does not apply to drugs that may be known to cause an abortion but which are prescribed for other medical indications, such as chemotherapeutic agents or diagnostic drugs, or for treatment of an ectopic pregnancy or spontaneous miscarriage;

3. "Preventive contraception" means any drug, chemical, biological product, or device used with the intent to prevent pregnancy and that is used in accordance with manufacturer instructions;

4. "Trafficking" means the act of buying, selling, or delivering medicine, drugs, or any substance illegally; and

5. "Unborn child" means the unborn offspring of human beings from the moment of conception, through pregnancy, and until live birth, including the human conceptus, zygote, morula, blastocyst, embryo, and fetus.

B. A person who knows or has reason to know that another person intends to use an abortion-inducing drug to cause an unlawful abortion and who knowingly or intentionally:

1. Delivers an abortion-inducing drug to that person; or

2. Possesses an abortion-inducing drug with the intent to deliver the abortion-inducing drug to that person,

commits trafficking in an abortion-inducing drug and is guilty of a felony upon conviction.

C. A person convicted of trafficking or attempting to traffic abortion-inducing drugs shall be guilty of a felony punishable by a fine not to exceed One Hundred Thousand Dollars (\$100,000.00), or by

confinement in the custody of the Department of Corrections for a term not to exceed ten (10) years, or by both such fine and imprisonment.

D. This act does not apply to a pharmacist or a manufacturer or distributor of drugs or surgical supplies who lawfully manufactures, possesses, offers, sells, or distributes, in the usual course of that entity's business or profession, any drug, medicine, or instrument intended for any lawful medical purpose.

E. Nothing in this act may be construed to prohibit the use, sale, prescription, or administration of a preventive contraceptive measure, drug, chemical, or device if the preventive contraceptive measure, drug, chemical, or device is used, sold, prescribed, or administered in accordance with manufacturer instructions.

Passed the House of Representatives the 25th day of March, 2025.

Presiding Officer of the House
of Representatives

Passed the Senate the 30th day of April, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____

Approved by the Governor of the State of Oklahoma this _____
day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____